

26SMCV00520 26SMCV00520

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Case Number: 26SMCV00520 Hearing Date: August 3, 2026 Dept: 9

Tentative

Ruling

Karunamayi

Fonseca, et al. v. International Coffee & Tea, LLC, et al. Case No.

26SMCV00520

Plaintiffs'

Motion for Trial Preference

Hearing

Date: August 3, 2026

Background

Plaintiffs

Karunamayi Fonseca, a minor, by and through her guardian ad litem Jara Rice, and Alexis Fonseca (collectively, "the Fonsecas," individually "Karunamayi" and "Alexis") sue Defendants International Coffee & Tea, LLC, d/b/a The Coffee Bean & Tea Leaf; International Coffee & Tea Holdings, LLC; The Coffee Bean & Tea Leaf; (together, "the Coffee Bean & Tea Leaf Defendants") and FH Vicente, LLC for negligence, negligent infliction of emotional distress, and consequential parental damages. The Fonsecas allege that an unreasonably heavy and improperly maintained restroom door at a Coffee Bean & Tea Leaf located at 11698 San Vicente Blvd. crushed Karunamayi's finger on January 27, 2024. (First Amended Complaint, ¶ 1.)

On January

27, 2026, the FONSECAS filed the initial complaint.

On

February 20, 2026, the FONSECAS filed the FAC.

On April

14, 2026, the FONSECAS filed this motion for trial preference. On July 21, 2026, the Coffee Bean & Tea Leaf filed opposition.

On May 18,

2026, FH Vicente, LLC answered.

On May 26,

2026, the Coffee Bean & Tea Leaf Defendants answered.

Arguments

The

FONSECAS move for trial preference under Code Civ. Proc. § 36(b) on the grounds that Karunamayi was eleven years old at the time of the accident and is currently thirteen years old. The FONSECAS argue that § 36(b) is mandatory where the minor is under fourteen years old and has a substantial interest in the case as a whole. (Motion for Trial Preference, p. 4.) The FONSECAS argue that they meet the statutory elements because this is a personal injury case, Karunamayi is under fourteen years old, and she has a substantial interest in the case. (Id. at p. 5.) The FONSECAS argue that the presence of adult co-plaintiffs does not defeat Karunamayi's right to trial preference, citing *Peters v. Superior Court* (1989) 212 Cal.App.3d 218. (Ibid.) The FONSECAS request that the Court set trial within 120 days of the order granting preference. (Id. at p. 7.)

In

opposition, the Coffee Bean & Tea Leaf Defendants oppose the FONSECAS' motion to the extent that it applies to Alexis Fonseca's parental claims because Alexis seeks damages for emotional distress resulting from witnessing the accident and parental consequential damages. The Coffee Bean & Tea Leaf Defendants argue that these claims should be severed because his claims require more extensive discovery and are fundamentally separate from Karunamayi's claims. (Opposition, p. 4.)

In reply, the
Fonsecas do not oppose severance provided it does not delay the minor's
preferential trial.

Governing
Law- Motion for Trial Preference

"A civil
action to recover damages for wrongful death or personal injury shall be
entitled to preference upon the motion of any party to the action who
is under 14 years of age unless the court finds that the party does not have a
substantial interest in the case as a whole." (Code Civ. Proc., §
36(b).) If the court makes the requisite finding of fact on a motion
for preference under CCP section 36(b), it has no discretion to
deny the motion due to the use of the word "shall" in the statute. (Peters v.
Superior Court (1989) 212 Cal.App.3d 218, 224-25; Rice v.
Superior Court (1982) 136 Cal.App.3d 81, 89-94.)

"Upon the
granting of such a motion for preference, the court shall set the matter for
trial not more than 120 days from that date and there shall be no continuance
beyond 120 days from the granting of the motion for preference except for
physical disability of a party or a party's attorney, or upon a showing of good
cause stated in the record." (Code Civ. Proc., § 36(f).)

Analysis

This
motion is undisputed as to Plaintiff Karunamayi's claims. This is a personal
injury case, Karunamayi is under fourteen, and she has a substantial interest
in this case. The Motion for Trial Preference is therefore GRANTED as to
Karunamayi's claims.

The Coffee

Bean & Tea Leaf Defendants argue that the Court should sever Alexis's
claims from Karunamayi's claims.

Plaintiffs do not oppose the requested severance. Motions to sever are
normally brought at the motion in limine phase, though the Court has broad
discretion to sever matters before trial. (Code Civ. Proc. § 598.)

The

Fonsecas cite *Peters v. Superior Court* (1989) 212 Cal.App.3d 218, which approves of a trial court decision grant trial preference where there is a parental co-plaintiff, but does require the trial court to do so. (*Peters v. Superior Court*, supra, 212 Cal.App.3d 218, 227.) In fact, in that case, the parties opposing the motion for trial preference did not argue that they would not have adequate time to prepare for trial if the motion were granted, so the issue was not decided. (*Ibid.*)

Here, the

Coffee Bean & Tea Leaf Defendants do argue that they need additional time to prepare for trial on Alexis's claims. Alexis's claims for negligent infliction of emotional distress and parental damages are contingent on findings that Karunamayi was injured in the manner that she alleges. Since Alexis's claims are dependent on findings in Karunamayi's case and do require different discovery, severance serves judicial convenience and economy. (See *Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504 [finding that a trial court did not abuse its discretion by severing issues at trial where several issues were dependent on proving an initial claim].)

Conclusion

The

Fonsecas' Motion for Trial Preference is GRANTED.

On its own

motion, the Court severs Karunamayi's and Alexis's claims. Phase I of trial in this matter, consisting of Karunamayi's negligence claims, is set for November 30, 2026.